

SUMMARY OF INCIDENT

Investigator: Inv. D. Alvarez	Team # 2	Supervisor: Capt. Bambauer
Date of Report: 12/06/90	C.C.R.B. No.: 9003078	Classification: Force
Date and Time of Incident: 09/29/90, 0230 hrs.	Date and Time Reported to C.C.R.B. 10/18/90, 1432 hrs.	
Location of Incident: 125 St. Between 7 & 8 Avenues		Precinct 028

C O M P L A I N T	NAME	STREET	CITY/BOROUGH	STATE	ZIP CODE
	§ 87(2)(b)	§ 87(2)(b)			
V I C T I M	S/A/A				
A T T Y	None Representing _____				

W I T N E S S	None
---------------------------------	------

MEMBERS OF THE SERVICE

RANK	NAME	SUB- JECT	WIT- NESS	SHIELD NO.	EMP.	TAX R ^T	NO.	DUTY STATUS ON OFF	ASSIGNMENT	RACE
PO	John Melendez	XX	☐	12037	24	890539		XX	Patrol	H
PO	Maximo Melendez	XX	☐	2384	28	891112		XX	Patrol	H
Sgt.	James Williams	XX	☐	1332	28	876208		XX	Patrol	W
		☐	☐							
		☐	☐							
		☐	☐							
		☐	☐							
		☐	☐							
		☐	☐							

ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
A). Complainant alleged MOS used force.	UF 245	1

COMMUNICATIONS TO BE ANSWERED: None

☐ P.C. Brief	☐ Mayor's Office	☐ I.A.D. Review	☐ Other (specify) _____
-------------------------------------	---	--	--

REPORT OF INVESTIGATION OF CIVILIAN COMPLAINT

Page 1 of 3

ADDITIONAL REMARKS/COMMENTS (If Necessary)

C.C.R.B. No. 9003078

§ 87(2)(b) alleged upon intake of his complaint that he was within a crowd where shots were fired and he ran away. He was grabbed by members of service and beaten with their guns into unconsciousness. He was arrested. § 87(2)(b) He stated he was treated and received stitches to his head. (ENC. 1)

The complainant scheduled an interview with Sgt. Celentano and then neither telephoned to cancel or reschedule it. The undersigned then contacted him to schedule another appointment but he stated he wanted to confer with his attorney and would call back after having done so. When § 87(2)(b) failed to contact this investigator, a call was placed to his home and a message left with his brother. § 87(2)(b) returned the call and stated he'd conferred with his attorney whom had advised him that she didn't want him to cooperate with this investigation until his court case was completed. (ENC. 4, 6)

§ 87(2)(b) provided the names of the subjects when he filed his complaint. The subjects were: Sgt. Williams, PO Tolentino of the 28 Pct. and PO Melen-
dez of the 24 Pct. Precinct records were requested and they disclosed that the complainant was the perpetrator of the shooting and that the weapon was discovered on him. (ENC. 5)

§ 87(2)(g)

SUMMARY OF FINDINGS AND RECOMMENDATIONS

ALLEGATION	CLASSIFICATION				FINDINGS AND RECOMMENDATIONS
	F	A	D	E	
A	*				§ 87(2)(g)

TOTAL ENCLOSURES

INVESTIGATOR'S SIGNATURE

SUPERVISOR'S SIGNATURE

6 [Signature] [Signature]